

23STCV28522 23STCV28522

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OSC RE PRELIMINARY

INJUNCTION

Application filed on August 24, 2026.

MOVING PARTY: Elly-Joy Shalomé Kaushansky (Plaintiff)

RESPONDING PARTY: Doron Shauly (Defendant)

NOTICE: OK.

RELIEF REQUESTED: Plaintiff seeks a preliminary injunction restraining Defendants from pursuing termination of Plaintiff's tenancy or recovery of possession based on the disputed rent obligation and alleged arrearages during the pendency of this action. Plaintiff also seeks restraints against harassment, intimidation, surveillance, unwanted contact, and unauthorized entry.

RULING: Denied. The temporary restraining order issued on August 25, 2026 terminates upon denial of the preliminary injunction. Defendant's alternative request that Plaintiff deposit unpaid and current rent into escrow is denied as moot.

BACKGROUND

On November 17, 2025, Plaintiff filed the operative First Amended Complaint against Alon West Hills, LLC (Alon West), Alon Investments, LLC, Iris Shapiro, Walter Florida, and Defendant Doron Shauly (Shauly) (collectively, Defendants). The First Amended Complaint asserts fifteen causes of action arising from Plaintiff's tenancy, alleged habitability conditions, rent disputes, alleged retaliation and harassment, and an April 2023 physical altercation. (First Amended Complaint at p. 1, ¶ 135.)

On August 24, 2026, Plaintiff filed the instant application with a declaration and exhibits. Plaintiff requests, among other relief, an injunction restraining Defendants from pursuing termination of her tenancy or recovery of possession based on the disputed rent obligation and alleged arrearages "during the pendency of this action, through trial or further order of this Court." Shauly filed an opposition on August 24, 2026. Plaintiff filed a reply and additional declaration and exhibits on August 25, 2026.

On August 25, 2026, the Court temporarily restrained Alon West from commencing or prosecuting an unlawful detainer action based on the August 22, 2026 Three-Day Notice to Pay Rent or Quit, or a successive or replacement notice founded upon the same disputed rental obligation. The Court denied the remaining requested restraints without prejudice and set this Order to Show Cause.

On September 4, 2026, Shauly filed an opposition to the Order to Show Cause. Shauly argues that no unlawful detainer action has been filed, Plaintiff may raise her rent dispute as a defense if one is filed, and Plaintiff has not paid rent since September 1, 2025. On September 9, 2026, Plaintiff filed a Reply and additional declaration.

LEGAL STANDARD

A preliminary injunction is an interim remedy intended to preserve the status quo pending a determination on the merits. (*White v. Davis* (2003) 30 Cal.4th 528, 554.) In deciding whether to issue a preliminary injunction, the Court considers two interrelated factors: the likelihood that the moving party will prevail on the merits and the relative interim harm likely to result from granting or denying the injunction. (*Ibid.*)

The factors operate on a sliding scale, but the moving party must demonstrate at least some possibility of success on the merits. (Id. at pp. 561-562.)

Plaintiff bears the burden of establishing the grounds for preliminary injunctive relief. (O'Connell v. Superior Court (2006) 141 Cal.App.4th 1452, 1481.) A preliminary injunction requires a sufficient factual showing by a person having knowledge of the facts, made under oath or declaration under penalty of perjury. (Ancora-Citronelle Corp. v. Green (1974) 41 Cal.App.3d 146, 150.) The Court may disregard conclusory statements in a supporting declaration. (Sullivan v. Fox (1987) 189 Cal.App.3d 673, 682-683.) If no evidentiary objection is made, a declaration may nevertheless be received despite hearsay or other inadmissible matter. (Waller v. Waller (1970) 3 Cal.App.3d 456, 464.)

DISCUSSION

Likelihood of Success

Plaintiff's First Amended Complaint alleges fifteen causes of action. (First Amended Complaint at p. 1.) The Application does not organize its likelihood-of-success showing by cause of action or apply particular evidence to the elements of each claim. (Application at pp. 11-19.) Instead, Plaintiff identifies numerous statutory and decisional authorities and argues generally that the record establishes probable success on "multiple grounds." (Application at pp. 11-19.) Her September 9 Reply similarly treats habitability, disputed rent, retaliation, harassment, and possession as an intertwined controversy. (September 9 Reply at pp. 1-8.)

Plaintiff emphasizes that Shauly is the only Defendant who filed an opposition. (September 9 Reply at pp. 2-3.) The absence of separate opposition by the remaining Defendants does not relieve Plaintiff of her burden to establish the grounds for preliminary injunctive relief. (O'Connell, *supra*, 141 Cal.App.4th at p. 1481.)

As relevant to the restraints requested, Plaintiff's showing principally implicates her Second Cause of Action for breach of the implied warranty of habitability, Third Cause of Action under Civil Code section 1942.4, Seventh Cause of Action for retaliation, and Fourteenth Cause of Action for landlord harassment. Plaintiff also refers to quiet enjoyment, constructive

eviction, assault, and battery, but does not develop those claims as separate grounds for the preliminary restraints requested.

In her initial application, Plaintiff submits more than 240 pages of exhibits, but much of the submission carries limited evidentiary weight. The moving declaration generally identifies categories of materials rather than laying a foundation for many individual documents and photographs. (See, e.g., Kaushansky Decl., ¶¶ 3-6, 14.) Several photographs are not tied by testimony to a particular date or location. Plaintiff's self-prepared letters, timelines, and medication list principally reflect her own assertions. By contrast, the inspection records and Plaintiff's sworn testimony concerning matters within her personal knowledge provide more direct evidentiary support.

Plaintiff's August 25 reply declaration provides additional foundation for certain reply materials, including the MIS Appliance video screenshots. (August 25 Kaushansky Decl., ¶¶ 2-4.) Shauly did not object to the evidence, so the Court does not exclude it on foundational or hearsay grounds. (Waller, *supra*, 3 Cal.App.3d at p. 464.) The source and foundation of the materials nevertheless bear on their weight.

Plaintiff's strongest showing concerns habitability. The May 24, 2023 Department of Public Health inspection documented missing drywall, missing baseboard molding, bubbling paint, and rodent droppings at Unit 105. (Application, Exs. at p. 138.) The July 5, 2023 reinspection found those conditions uncorrected. (Application, Exs. at p. 144.) Plaintiff also presently declares that electrical, plumbing, HVAC, rodent, and unfinished-construction conditions remain. (August 25 Kaushansky Decl., ¶¶ 6-7.) For purposes of preliminary relief, that evidence supports some possibility of success on Plaintiff's habitability claim.

That showing, however, does not by itself demonstrate a sufficient likelihood of success on a ground supporting the possession restraint requested. Plaintiff relies on Civil Code section 1942.4 to challenge the rent demand and Three-Day Notice. Section 1942.4 prohibits specified rent demands and issuance of a three-day notice to pay rent or quit only when all conditions stated in subdivision (a) are satisfied. (Civ. Code, § 1942.4, subd. (a).) Those conditions include qualifying substandard conditions, written governmental notice after inspection, continued nonabatement for 35 days beyond service of that notice without good cause, and absence of tenant causation. (Id., subd. (a)(1)-(4).)

Plaintiff has evidence bearing on some of those requirements, but does not make a developed preliminary showing as to each statutory predicate. The May 2023 inspection report states that it was sent to property management by email. (Application, Exs. at p. 138.) Plaintiff does not sufficiently show, for purposes of this application, when or how the written governmental notice was served so as to commence the statutory 35-day period. Her papers also do not develop whether the continued failure to abate was without good cause or make a developed showing as to the tenant-causation requirement. The present showing under section 1942.4 therefore provides limited support for the requested possession restraint.

Plaintiff also contends that the amount demanded was not legally due because of habitability conditions and disputed rent increases. She does not provide a calculation, supported by competent evidence, from which the Court can determine at this stage that she is likely to establish the lawful monthly rent, the reasonable rental value of the premises during the relevant period, or the resulting amount legally due. The existence of a rent dispute, without more, does not demonstrate a likelihood that the August 22 demand will ultimately be found invalid.

The retaliation showing is weaker. Civil Code section 1942.5, subdivision (d), prohibits specified landlord conduct undertaken for the purpose of retaliating against a tenant because the tenant lawfully and peaceably exercised rights under the law. The tenant bears the burden of producing evidence that the challenged conduct was, in fact, retaliatory. (Civ. Code, § 1942.5, subd. (d).)

The evidence shows that Plaintiff repeatedly complained about repairs, habitability, rent, and her tenancy. The record also reflects prior Three-Day Notices that Plaintiff contemporaneously characterized as retaliatory. Much of the evidence she offers on retaliation, however, consists of her own characterization of Defendants' conduct or attorney correspondence reporting her allegations. Those materials document Plaintiff's complaints and her contemporaneous contention that Defendants were retaliating against her, but provide limited evidence from which retaliatory purpose may be inferred.

Plaintiff relies heavily on this Court's ordered August 21, 2026 discovery meet and confer and service of the Three-Day Notice the following day to show retaliation. (Kaushansky Decl., ¶¶ 10-12.) The timing

provides some circumstantial support for Plaintiff's theory. Its weight is limited, however, because the record does not identify who decided to issue the notice, when that decision was made, or whether the decisionmaker knew what occurred during the conference. The claimed nonpayment also substantially predates that conference. On this preliminary record, the chronology provides only limited support for a likelihood that Plaintiff will ultimately establish retaliatory purpose.

Plaintiff's harassment showing likewise provides limited support for the prospective restraints requested. LAMC section 45.33 requires bad-faith landlord conduct directed at a tenant that causes detriment or harm. (LAMC, § 45.33.) Civil Code section 1940.2 separately prohibits specified conduct undertaken for the purpose of influencing a tenant to vacate. (Civ. Code, § 1940.2, subd. (a).)

Plaintiff describes late-night knocking, following, telephone calls, unauthorized entries, and statements concerning when she intended to move. (Kaushansky Decl., ¶ 8.) Her September 9 declaration additionally identifies Florida as following her through the property and into the garage to deliver notices, and alleges backyard entry, interruption of internet service, and water interruptions. (September 9 Kaushansky Decl., ¶¶ 12, 14-19.) The allegation concerning Florida is more specific, but many of the remaining incidents are undated or involve unidentified persons. As presented, the circumstances surrounding the anonymous telephone calls, unidentified following, internet interruption, and water interruptions provide little support for an inference that those events were attributable to Defendants. The identified notice-delivery incidents likewise do not sufficiently show a realistic prospect of future conduct warranting the broad restraints requested.

Prospective injunctive relief requires actual evidence of a realistic prospect that the party to be enjoined intends to engage in the prohibited conduct. (*Korean Philadelphia Presbyterian Church v. California Presbytery* (2000) 77 Cal.App.4th 1069, 1084.) The alleged April 2023 altercation is a completed event. The present showing does not demonstrate a likelihood of recurrence sufficient to support prospective restraint. (*Huntingdon Life Sciences, Inc. v. Stop Huntingdon Animal Cruelty USA, Inc.* (2005) 129 Cal.App.4th 1228, 1266.)

Taken as a whole, the record shows repeated complaints concerning the condition of Plaintiff's apartment and some independent evidence

supporting a habitability dispute. Beyond that, much of the submission consists of Plaintiff's own allegations, characterizations, or materials entitled to limited evidentiary weight. The likelihood-of-success showing supporting the particular injunction requested is therefore limited.

Balance of Interim Harms

The Court considers the merits and interim-harm factors together. (*Butt v. State of California* (1992) 4 Cal.4th 668, 678.) The greater the plaintiff's showing on one, the less must be shown on the other to support an injunction. (*Ibid.*)

Plaintiff contends she faces serious potential harm if she ultimately loses possession of her longtime home. She declares that displacement would affect her safety and stability, impose relocation burdens, interfere with prosecution of this action, and separate her from the premises and materials she considers relevant evidence. (September 9 Reply at pp. 1-2, 9.)

Denial of the present injunction does not itself result in eviction. As of September 4, Shauly represented that no unlawful detainer action had been filed. (September 4 Opposition at p. 3.) If Alon West elects to pursue possession, Plaintiff may be required to defend a separate unlawful detainer proceeding, but the right to possession will be determined there and Plaintiff may assert any defenses properly bearing on that issue. The anticipated harm from actual displacement therefore depends on Alon West commencing such an action and prevailing after those defenses are adjudicated.

By contrast, granting the requested injunction would bar Alon West and those acting on its behalf from filing or prosecuting an unlawful detainer based on the claimed nonpayment potentially until trial in August 2027. The papers reflect that Plaintiff ceased paying rent in or around September 2025, although she disputes the amount legally due. Absent further payments, Defendants' claimed arrearage would continue to increase during that period.

The Court has equitable authority to restrain a threatened unlawful detainer in a proper case. (*Dennis v. Overholtzer* (1957) 149 Cal.App.2d 101, 104-105.) *Dennis*, however, involved a pending equitable action that already placed specific performance, title, possession, competing

leases, and entitlement to rents before the court, and the rents had been impounded. The Court emphasized that the pending action could determine the right to possession “as well as, if not better than,” the threatened unlawful detainer. (Id. at pp. 102-105.) No comparable circumstance is shown here.

Plaintiff's reliance on *Hernandez v. Stabach* (1983) 145 Cal.App.3d 309 does not compel a different result. There, the evidence showed that after tenants organized and asserted statutory rights concerning allegedly dangerous and uninhabitable conditions, the landlord began filing unlawful detainer actions against participating tenants based on overcrowding the landlord had knowingly permitted when renting the units. The Court of Appeal found that chronology supported retaliatory motive. (Id. at pp. 314-315.) Here, although the record reflects prior Three-Day Notices and Plaintiff's contention that they were retaliatory, the present showing does not comparably connect those notices or the threatened possession proceeding to a retaliatory purpose. The requested relief also differs. *Hernandez* required the landlord to obtain leave of court before proceeding, did not bar a nonpayment unlawful detainer outright, and required the tenants to continue paying rent into a joint trust account. (Id. at pp. 312-317.)

The breadth and duration of the requested relief are therefore material. A preliminary injunction should be tailored to the demonstrated likelihood of harm and employ the “least disruptive remedy adequate to the task.” (*Kings County Farm Bureau v. State Water Resources Control Bd.* (2025) 115 Cal.App.5th 782, 819.) Here, Plaintiff has made only a limited showing supporting the particular restraints sought, while the requested possession injunction would prevent Alon West and those acting on its behalf from invoking the statutory process for adjudicating possession potentially through the August 2027 trial date.

Considering the two factors together, Plaintiff's limited showing on the grounds supporting the particular restraints, coupled with the breadth and duration of those restraints, is insufficient to justify a preliminary injunction notwithstanding the potential consequences of eventual displacement. The balance therefore does not favor issuance of a preliminary injunction.

The Court's ruling on the preliminary injunction is not an adjudication of the ultimate merits of the action. (*Cohen v. Board of Supervisors* (1985) 40 Cal.3d 277, 286.)

CONCLUSION

Plaintiff's request for a preliminary injunction is denied. The temporary restraining order issued on August 25, 2026 terminates upon denial of the preliminary injunction. Defendant's alternative request that Plaintiff deposit unpaid and current rent into an escrow account is denied as moot.